

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUOE031125: CHELSEA TAVIANO vs HYGIENA LLC

06/10/2026 in Department 44

Motion to Approve Settlement

Effective **January 5, 2026**, Judge Charmaine H. Buehner and all cases previously assigned to Department J4 at the Juvenile Justice Center in Oxnard transferred to Department 44, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, California 93009.

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Continue Hearing on Plaintiff’s Motion to Approve PAGA Settlement

Tentative Ruling:

The Motion for Approval of PAGA Settlement is DENIED. Plaintiff has failed to apprise the LWDA and the Court of the terms of the settlement or that it is fair and reasonable.

On April 20, 2026, the Court conditionally granted Plaintiff’s Motion to Approve PAGA Settlement subject to the modification of the terms concerning costs and attorney’s fees, and to Plaintiff’s disclosure the “confidential” settlement terms of this single-action complaint for PAGA penalties.

The Court permitted Plaintiff to provide supplemental information and continued the hearing on this motion for the purpose of such disclosure. In response, Plaintiff filed a supplemental declaration to request a modification of the attorney fee award of 25 %, and an increase in costs

related to the Berger Consulting costs sought. On this new information, the Court is inclined to allow the previously disallowed costs and increase the attorney fee award to the requested 1/3 amount. However, with respect to the settlement agreement that the parties deemed “confidential,” the Court cannot conclude that the PAGA settlement is either fair or reasonable in this PAGA-only action. Plaintiff submitted, for an *in camera* review, the settlement agreement by way of letter to the Court, and in the letter indicated that the document was submitted pursuant to the April 20 order. Further, Plaintiff’s letter to the Court is marked as “Confidential Mediation and Settlement Communication Privileged Pursuant to Evidence Code §§ 1119 and 1152.”

As an initial matter, Plaintiff mischaracterizes the Court’s April 20 order, which did not authorize this court’s “in camera” review. Nor is there a procedural mechanism that would allow Plaintiff to communicate the document to the Court in the manner she did. To the contrary, the rules of court and controlling authority does not allow for the Court’s *in camera* review in this case. Court records are presumptively public under the Constitution of the State of California. (Cal. Const., art. I, § 3. [“The people have the right of access to information concerning the conduct of the people's business, and, therefore, the meetings of public bodies and the writings of public officials and agencies shall be open to public scrutiny.”].) The *parties’* determination that the settlement agreement between them is confidential is without legal effect insofar as the Court is concerned absent a determination, under California Rules of Court 2.550 and 2.551 that a record, for purposes of the public court file and considered in connection with an adjudicated matter, that it is confidential and should be sealed. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1279-80.) Rule 2.551, subds. (a) and (b) flatly prohibit a party from filing or presenting documents under seal without a court order based solely on the parties’ agreement or stipulation. (*Savaglio v. Wal-Mart* (2007) 149 Cal.App.4t 588, 600). Plaintiff’s informal submission of the “confidential” settlement agreement that is the basis for an adjudication without a showing under Rules 2.550 and 2.551 amounts to a request to seal order without the necessary findings and potentially violates the State Constitution. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 886-890, citing *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1181 and Cal. R. Ct., rules 2.550 and 2.551.) Accordingly, the Court declines to consider the Settlement Agreement.

In addition to running afoul of the above principles, the manner in which Plaintiff’s requests that the Court to consider settlement agreement does not comport with the requirement under PAGA, which requires the LWDA be notified of the settlement terms. “Representative PAGA actions directly enforce *the state’s* interest in penalizing and deterring employers who violate California’s labor laws.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 548 [internal quotation marks omitted; italics in original].) In other words, the LWDA must be apprised of the terms of the settlement: “The superior court shall review and approve any settlement of any civil action filed pursuant to this part. The proposed settlement *shall be submitted to the agency* at the same time that it is submitted to the court. (Labor Code § 2699, subd. (s)(2) [emphasis added].) While there may be a justification for the Plaintiff to enter into a separate and confidential settlement outside of the PAGA settlement in this PAGA-only action, the Court has no information from which this conclusion can be drawn and to also conclude that the PAGA settlement agreement is fair and reasonable.

Accordingly, the Court DENIES Plaintiff's motion.